

COMBINED SYNOPSIS / SOLICITATION

RFQ-26-PHX-021

FAR PART 12 – MULTIPLE-AWARD BPA

ISBEE SET-ASIDE

1. SYNOPSIS INFORMATION

Agency: Department of Health and Human Services (HHS), Indian Health Service (IHS)

Office: Phoenix Area Indian Health Service (PAIHS)

Type of Action: Combined Synopsis/Solicitation

Authority: FAR Part 12 – Acquisition of Commercial Products and Commercial Services (Blanket Purchase Agreement)

Set-Aside: Indian Small Business Economic Enterprise (ISBEE)

Contract Type: Multiple-Award Blanket Purchase Agreement (BPA); BPA Calls will be firm-fixed price

Anticipated BPA Term: The BPA ordering period shall not exceed five (5) years from date of award.

Number of BPAs Anticipated: Up to two (2)

NAICS Code: 541611 – Other Accounting Services

Small Business Size Standard: \$24.5m

Buy Indian Set-Aside Authority: This acquisition is conducted pursuant to the Buy Indian Act (25 U.S.C. § 47) and HHSAR Subpart 326.6 and is restricted to Indian Small Business Economic Enterprises (ISBEEs).

Commercial Services: The services acquired under this solicitation are commercial services as defined in FAR 2.101 and are being acquired in accordance with FAR Parts 12.

This Combined Synopsis/Solicitation constitutes the only solicitation issued for this requirement.

2. DESCRIPTION OF REQUIREMENT

The Indian Health Service, Phoenix Area Office, has a requirement for off-site medical and dental coding, auditing, and data entry services for multiple Service Units within the Phoenix Area. Services are required to support compliance with CMS, Federal, State, and third-party payer requirements, improve data integrity, and ensure timely and accurate reimbursement.

The quantities of encounters and services to be ordered under this BPA will vary based on Service Unit needs. Any quantities referenced in this solicitation or associated attachments are estimates for evaluation and planning purposes only. Actual quantities may vary above or below the estimated amounts. The Government does not guarantee any minimum quantity of services under the BPA. Payment will be based solely on the actual number of completed encounters ordered and accepted by the Government.

Service Units that may utilize this BPA include, but are not limited to:

- Elko Service Unit, NV
- Uintah-Ouray Service Unit, UT

- Hopi Health Care Center, AZ
- Phoenix Indian Medical Center, AZ
- Whiteriver Service Unit, AZ
- Fort Yuma Health Center, CA
- Colorado River Service Unit, AZ/NV/CA
- Desert Visions Youth Wellness Center, AZ
- Nevada Skies Youth Wellness Center, NV

The Statement of Work is provided as an attachment to this solicitation.

3. PERIOD OF PERFORMANCE

The anticipated BPA period of performance is 5 years from date of award. BPA calls (Orders) will be issued within this period.

Orders may extend beyond the BPA ordering period, provided the order is issued prior to the expiration of the ordering period.

4. ELIGIBILITY

This acquisition is restricted to ISBEEs

ISBEE eligibility shall be demonstrated by submission of a completed and signed Indian Economic Enterprise (IEE) Representative Form. Quotations that do not include the required IEE documentation will be determined ineligible and will not be considered for award.

Quoters are responsible for ensuring all required documentation identified in Section 6, Quotation Content, is submitted by the quotation due date.

5. SUBMISSION INSTRUCTIONS

Quoters shall submit quotations electronically via email to Contracting Officer at dekovan.cook@ihs.gov.

Quotations shall be submitted no later than the date and time specified in the solicitation posting. All times are local Phoenix, Arizona time. Late submissions may not be considered including post-closing submissions of required IEE documentation.

Technical Quotations shall be submitted in searchable PDF format.

Priced Quotations shall be submitted as a separate Excel file and valid for a minimum of ninety (90) calendar days.

The Government may make award without discussions.

6. QUOTATION CONTENT

Quotations shall be clear, concise, and complete, and shall include the following:

A. Technical Approach

Description of the approach to providing medical and dental coding, auditing, and data entry services in accordance with the Statement of Work, including ability to meet coding timelines, support multiple Service Units, manage fluctuating workloads, and ensure uninterrupted services.

B. Experience and Past Performance

Description of relevant experience performing similar services, including experience with IHS, Tribal, Federal, or large healthcare systems, and experience using RPMS, PCC, ADT, EHR/EDR, and hybrid RPMS/PATH environments.

C. Staffing and Management

Description of proposed staffing, including use of AAPC- or AHIMA-certified coders, supervision of staff in training, daily productivity expectations, and management controls.

D. Quality Control

Description of quality control processes, audit methodologies, sampling rates, acceptable error thresholds, and corrective action processes.

E. Privacy and Security

Description of compliance with HIPAA, Privacy Act, HHS and IHS security requirements, secure system access, and HSPD-12 requirements.

F. Price

Completed price schedule with firm-fixed-price unit rates for all services identified in the Statement of Work. Price quotations shall be submitted in Microsoft Excel format using active formulas for all extended amounts and totals to permit validation of calculations. Unit prices shall be rounded to two (2) decimal places unless the pricing structure requires greater precision.

Pricing information shall not be included in the non-price portions of the quotation.

G. Indian Economic Enterprise (IEE) Documentation

Quoters shall submit a completed and signed Indian Economic Enterprise (IEE) Representative Form with their quotation to demonstrate eligibility as an Indian Small Business Economic Enterprise (ISBEE).

Failure to submit the required IEE Representative Form at the time of quotation submission shall render the quotation non-compliant and ineligible for award. The Government will not request missing IEE documentation after the quotation due date.

7. EVALUATION FACTORS AND BASIS FOR AWARD

The Government will evaluate quotations to determine which vendors represent the best overall value for establishment of BPA(s).

The Government intends to establish up to two (2) BPAs with responsible ISBEE vendors whose quotations represent the best overall value to the Government, considering price and non-price factors.

7.1 Eligibility and Compliance Review

Prior to evaluation, the Government will review quotations for compliance with solicitation requirements, including submission of the required IEE Representative Form. Quotations that fail to comply with material solicitation requirements will not be further evaluated.

7.2 Evaluation Factors (in descending order of importance)

1. Technical Capability and Approach

The Government will evaluate the extent to which the quotation demonstrates the ability to meet the performance requirements of the PWS, including:

- Ability to meet required coding timeliness standards (4-day outpatient / 6-day inpatient)
- Approach to maintaining $\geq 95\%$ accuracy for coding and data entry
- Ability to manage fluctuating workloads and multiple Service Units
- Use of RPMS/EHR systems and transition to PATH EHR
- Staffing approach, including certified coders and supervision

2. Relevant Experience and Past Performance

The Government will evaluate the relevance and quality of prior experience performing similar services, including:

- Experience with IHS, Tribal, Federal, or large healthcare systems
- Experience with RPMS, PCC, ADT, EHR/EDR systems
- Record of meeting timeliness and accuracy standards comparable to PWS requirements

Past performance information may be obtained from contractor references, CPARS, or other Government sources.

3. Quality Control and Compliance

The Government will evaluate the effectiveness of the Offeror's Quality Control Plan (QCP), including:

- Internal audit methodology and sampling approach (minimum 10% expected)
- Processes for ensuring $\geq 95\%$ accuracy
- Error tracking and corrective action procedures
- Ability to identify, report, and resolve deficiencies
- Alignment with PWS Performance Requirements Summary (PRS)

4. Price

Price will be evaluated for reasonableness, completeness, and balance in relation to the technical quotation and the Government's requirements. Pricing will be evaluated based on the total evaluated price derived from the pricing schedule.

7.3 Best Value Tradeoff

All non-price factors, when combined, are significantly more important than price.

The Government will perform a comparative assessment of quotations to determine which quotation provides the best overall value.

The Government may select a higher-priced quotation if the additional technical merit, reduced performance risk, or demonstrated ability to meet or exceed the PWS performance standards (including 95% AQL requirements) justifies the price premium.

The Government reserves the right to:

- Establish BPAs with fewer than two vendors
- Make award without discussions
- Conduct exchanges if determined necessary

8. MULTIPLE-AWARD BPA STATEMENT

The establishment of multiple BPAs is intended to ensure continuity of services, provide surge capacity, reduce performance and compliance risk, and allow efficient placement of BPA calls based on vendor availability and performance. Establishment of a BPA does not guarantee the placement of any BPA calls.

BPA calls will be issued in accordance with FAR 12.201-1(3). BPA holders will be provided fair opportunity to be considered for each call unless one of the exceptions at FAR 12.201-1 applies, unless an exception is documented in the contract file. The Government may consider price, performance, availability, workload distribution, and other relevant factors when issuing BPA calls.

9. APPLICABLE PROVISIONS AND CLAUSES, AND FAR REFERENCES

FAR 12.201-1 – Soliciting competition

FAR 12.203 – Evaluation of quotations

FAR 12.201-1 – Blanket Purchase Agreements

A. SOLICITATION PROVISIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

FAR 52.212-1, Instructions to Offerors – Commercial Products and Commercial Services (Sept 2023)

(Addendum: Quoters shall submit quotations in accordance with Section 5 of this Combined Synopsis/Solicitation.)

FAR 52.212-2, Evaluation – Commercial Products and Commercial Services (Nov 2021)

The evaluation factors are set forth in Section 7 of this solicitation.

FAR 52.212-3, Offeror Representations and Certifications – Commercial Products and Commercial Services (Oct 2025)

Offerors shall complete electronic representations and certifications in the System for Award Management (SAM).

B. CONTRACT CLAUSES

FAR 52.212-4, Contract Terms and Conditions – Commercial Products and Commercial Services (Nov 2023)

The following addenda apply:

- (1) Invoices shall be submitted in accordance with FAR 52.212-4(g) and HHSAR 352.232-71, and the invoicing instructions in the Statement of Work.
- (2) Services shall be performed remotely at the Contractor's facility unless otherwise authorized in writing by the Contracting Officer.

FAR 52.212-5, Contract Terms and Conditions Required to Implement Statutes or Executive Orders – Commercial Products and Commercial Services (Current Version)

The following clauses under paragraph (b) are applicable:

- 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements
- 52.204-13, System for Award Management Maintenance
- 52.204-18, Commercial and Government Entity Code Maintenance
- 52.204-21, Basic Safeguarding of Covered Contractor Information Systems
- 52.204-27, Prohibition on a ByteDance Covered Application
- 52.209-6, Protecting the Government's Interest When Subcontracting
- 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations
- 52.219-28, Post-Award Small Business Program Representation
- 52.222-3, Convict Labor
- 52.222-19, Child Labor—Cooperation with Authorities and Remedies
- 52.222-21, Prohibition of Segregated Facilities
- 52.222-26, Equal Opportunity
- 52.222-35, Equal Opportunity for Veterans
- 52.222-36, Equal Opportunity for Workers with Disabilities
- 52.222-37, Employment Reports on Veterans
- 52.222-40, Notification of Employee Rights Under the National Labor Relations Act

- 52.222-41, Service Contract Labor Standards
- 52.222-42, Statement of Equivalent Rates for Federal Hires (if applicable)
- 52.222-50, Combating Trafficking in Persons
- 52.222-54, Employment Eligibility Verification
- 52.222-55, Minimum Wages Under Executive Order 14026
- 52.222-62, Paid Sick Leave Under Executive Order 13706
- 52.224-3, Privacy Training
- 52.225-13, Restrictions on Certain Foreign Purchases
- 52.232-33, Payment by Electronic Funds Transfer – System for Award Management
- 52.232-40, Providing Accelerated Payments to Small Business Subcontractors
- 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (if applicable)

C. SERVICE CONTRACT LABOR STANDARDS (SCLS)

The applicability of the Service Contract Labor Standards statute will be determined based on the labor categories proposed and the primary place of performance.

The Service Contract Labor Standards statute (41 U.S.C. Chapter 67), as implemented by FAR Subpart 22.10, applies to this acquisition.

FAR 52.222-41, Service Contract Labor Standards, is incorporated by reference in this solicitation and any resulting Blanket Purchase Agreement (BPA) and BPA calls.

C.1 Wage Determination

The applicable U.S. Department of Labor (DOL) Wage Determination(s) in effect at the time of award for the Contractor's primary place of performance are incorporated into this solicitation and will be incorporated into any resulting BPA and BPA calls.

For purposes of this acquisition, the primary place of performance is defined as the physical location(s) where covered service employees will perform the majority of the work required under the BPA or BPA call.

C.2 Identification of Place of Performance

Offerors/Quoters shall identify in their quotation the anticipated primary place(s) of performance, including city and state.

The Contractor shall notify the Contracting Officer in writing prior to any change in the place of performance during the ordering period.

C.3 Changes in Place of Performance

In accordance with FAR 22.1009(b), if the place of performance changes during contract performance, the Contracting Officer may incorporate the appropriate Wage Determination(s) applicable to the new place(s) of performance by contract modification.

The Contractor shall be responsible for compliance with all applicable Wage Determination requirements based on the actual location(s) where covered employees perform work.

C.4 Multiple Performance Locations

If covered services are performed in more than one geographic location, the Contractor shall comply with the applicable Wage Determination for each location where covered service employees perform work.

The Government reserves the right to incorporate multiple Wage Determinations, as applicable, to ensure compliance with SCLS requirements.

C.5 Subcontractors

The Contractor shall ensure that any subcontractor performing covered services under this BPA or any BPA call complies with all applicable Service Contract Labor Standards requirements, including payment of wages and fringe benefits in accordance with the applicable Wage Determination(s).

C.6 Remote Performance

Services under this BPA are anticipated to be performed remotely at the Contractor's facility or approved place(s) of performance. Remote performance does not relieve the Contractor of its obligation to comply with SCLS requirements based on the geographic location(s) where covered service employees perform work.

D. BUY INDIAN / ISBEE CLAUSES

This acquisition is conducted pursuant to the Buy Indian Act (25 U.S.C. § 47) and HHSAR Subpart 326.6.

The following HHSAR clauses are incorporated:

- 352.226-1, Indian Preference
- 352.226-2, Indian Preference Program

E. ELECTRONIC INVOICING

HHSAR 352.232-71, Electronic Submission of Payment Requests (Dec 2015) is incorporated by reference.

All payment requests under this BPA and any resulting BPA calls shall be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform (IPP) at <https://www.ipp.gov>, unless otherwise directed by the Contracting Officer.

F. PRIVACY AND INFORMATION SECURITY

The following clauses are incorporated by reference:

- FAR 52.224-1, Privacy Act Notification
- FAR 52.224-2, Privacy Act
- FAR 52.239-1, Privacy or Security Safeguards
- HHSAR 352.224-70, Privacy Act
- HHSAR 352.224-71, Confidential Information

Contractor personnel accessing Government systems remotely shall comply with all applicable HHS and IHS privacy and information security requirements as specified in the Statement of Work.

G. ORDERING PROCEDURES

Blanket Purchase Agreements established as a result of this solicitation will be governed by FAR 12.201-1. BPA calls will be issued in accordance with FAR 12.201-1(3).